

TENTATIVE RULING(S) FOR July 22, 2026

Department S22 – Judge David Driscoll

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-37) at (909) 708-8707 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2607013

JONATHAN GROYN CABALLERO v. MICHAEL AGRON

TENTATIVE RULING

On March 3, 2026, Plaintiff Jonathan Groyon Caballero filed a judicial form complaint against Defendant Michael Agron. Plaintiff alleges causes of action for motor vehicle and negligence related to a motor vehicle accident.

Now before the Court is Plaintiff's motion to compel Defendant's deposition. Plaintiff asserts that after proper service of a deposition notice, Defendant has refused to appear for his deposition and has not served any valid objections excusing his attendance. Instead, the only stated reason is defense counsel's unavailability until September 2026, which Plaintiff argues is not a proper objection.

The deposition notice was served May 11, 2026, setting the deposition for June 23, 2026. (Hong Decl. ¶ 4, Exh. 1.) Plaintiff asserts that on May 12, 2026, Defendant served an objection, stating the date had been unilaterally scheduled and defense counsel was unavailable. With respect to the meet and confer, Plaintiff's

counsel states a good faith effort was made over a two week period to obtain alternative dates, with offers of accommodation. Defense counsel refused to provide any dates of availability before September 2026. (Hong Decl. ¶¶ 6-12 and Exh. 3.) Plaintiff argues defense counsel's claimed unavailability does not justify a four month delay. Plaintiff seeks sanctions.

In opposition, Defendant asserts that he has provided dates, but due to scheduling constraints, is not available until September 2026. Defendant asserts that he has timely communicated availability and is willing to cooperate in scheduling the deposition at the earliest mutually convenient date. He argues that the fact the dates fall in September 2026, does not constitute noncompliance, but reflects scheduling realities.

Defendant also states the motion is premature and that the deposition is currently scheduled for September 7, 2026. Therefore, Defendant request the motion be denied. **No declaration is submitted by counsel in support of Defendant's contentions.**

Plaintiff replies that Defendant failed to provide dates and Defendant's only position is that defense counsel is not available until September 2026. Plaintiff again argues "unilaterally scheduled" is not a valid objection given the statute allows Plaintiff to set a deposition on statutory notice. (Code Civ. Proc., §§ 2025.210. 2025.270.) Plaintiff also argues that defense counsel does not produce any evidence in support of unavailability.

Code of Civil Procedure section 2025.450, subdivision (a), allows a party who served a valid deposition notice, not the subject of a valid objection, to move for an order to compel the deposition of the individual and production of documents when the individual fails to appear at the deposition and fails to provide the requested documents. Under section 2025.450, subdivision (b), the motion also must be accompanied by a meet and confer.

Sanctions shall be imposed against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel unless the Court finds that the one subject to the sanction acted with substantial justification or other circumstances make the imposition of sanctions unjust. (Code Civ. Proc., § 2025.450, subd. (g).)

Defense counsel's unexplained general representation that counsel or his client will not be available to attend a deposition of the defendant over a roughly 3 to 4 month period does not constitute sufficient

justification for refusal to be present for a properly noticed deposition, especially in light of the fact that counsel has not submitted a sworn declaration supporting such a contention.

TENTATIVE RULING

The court grants Plaintiff's motion compelling the deposition with attendant production of documents without objections. The parties should be prepared to agree to a date for the deposition at the time of the hearing and the court will order the administration of the deposition and production of documents for a date specific. The court imposes monetary sanctions solely as against defense counsel (not defendant) for the sum of \$1,800.00 (4 hours X \$450).

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CIVSB2205587

CHRISTOPHER TATUM v. G AND C SWAN, INC.

TENTATIVE RULING

Plaintiff Christopher Tatum contends he checked himself into a detox facility in Upland in May 2021 and, while there, was subjected to dependent adult abuse. Tatum then commenced suit in April 2022 against those operating the facility, namely, Defendants G and C Swan, Inc. and His House (though the latter is simply the DBA of the former). The operative first amended complaint (FAC) was then filed in December 2022.

The FAC indicates that at the time Tatum checked in, he had an undiagnosed perforated ulcer that rapidly deteriorated. The condition became so bad that Tatum was unable to care for himself. The need for medical care was also obvious and Defendants failed to take action despite Tatum's pleas. Ultimately, Tatum was admitted to the hospital for emergency surgery. Overall, the FAC contains claims for (1) general negligence, (2) dependent adult abuse, and (3) intentional infliction of emotional distress.